

Tentative Rulings and Resolution Review Hearings
August 24, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

******IMPORTANT: PLEASE NOTE THAT THE COURT NO LONGER USES COURTCALL. REMOTE APPEARANCES MAY NOW BE MADE THROUGH WEBEX.******

Remote appearances through WebEx are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

To appear through WebEx, please follow these instructions:

Call 1-(844) 517-1271 at least 10 minutes before your hearing start time.

The access code is 2480 682 3750. There is no attendee ID number, so just follow verbal instructions for prompt.

Once you have gained access, wait for the court to start the calendar. Please follow these instructions once a calendar is called:

1. Please mute your telephone until your case is called.
2. Please do not place the call on hold.
3. Minimize all background noise during your call.
4. Please identify yourself, each time, prior to speaking with the court.
5. Disconnect when the court has completed your case or cases.
6. The court prohibits the recording of these proceedings.

8:30 a.m. Law and Motion

GEROSIN, ET AL. VS. REDDING SENIOR LIVING LLC, ET AL.

CASE NUMBER: 25CV-0209491

Tentative Ruling on Motion to Compel Deposition: Plaintiff moves pursuant to CCP § 2025.450 for an order compelling the deposition of the Custodian of Records of Defendant Redding Senior Living LLC dba Hilltop Springs Senior Living. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Plaintiff filed this Motion to Compel Deposition pursuant to CCP § 2025.450 on July 2, 2026 seeking to compel a deposition they noticed for July 30, 2026. (Decl. Yarnall ¶ 31 Ex. G.) The Motion was brought prematurely, as the conditions of CCP § 2025.450(a) had not been met. Additionally, although the motion was accompanied by a meet and confer declaration as required by CCP 2025.450(b)(2), it appears this matter could have been resolved without the Court's intervention. Defendants' evidence establishes good faith efforts to find a mutually agreeable date for deposition. Defendants offered a July 15 date, which Plaintiff had previously indicated was acceptable. Plaintiff proceeded to file this motion, promising to take the matter off calendar if the July 30 deposition proceeded. This is not a good faith effort at resolution and unnecessarily burdens the court and parties with motion practice.

Additionally, the Plaintiff continued hearing on this Motion from August 3 to August 24. Plaintiff also filed a Reply on August 17, 2026, which raises new facts and argument not presented in the original Motion. Moreover, Plaintiff concedes that it has taken a deposition that partially satisfies the relief sought here. Plaintiff is directed to comply with the CCP and to undertake good faith efforts to meet and confer before seeking court intervention. The Motion is **DENIED**.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

Tentative Ruling on Motion for Terminating Sanctions: Defendant Joshua Littlepage move for an order of terminating sanctions against Plaintiff William Hollowell pursuant to CCP § 2030.010, 2023.010, 2030.300(e) and 2031.320.

As a preliminary matter, the Court notes that Plaintiff filed a declaration on July 21, 2026, one day after the present motion was filed. Plaintiff's declaration has attached a number of documents including further responses to discovery. The Court will consider the contents of the declaration in ruling on this motion. Further, the Court notes that the declaration also attached a purported motion for relief, but it was not properly filed as a motion. Therefore, the Court finds that the "motion" is not before the Court at this time.

Merits: Misuses of the discovery process include disobeying a court order to provide discovery. CCP § 2023.010(g). The court may impose sanctions against anyone engaging in misuse of the discovery process, including monetary, issue, evidence, and terminating sanctions. CCP § 2023.030. Monetary sanctions *shall* be imposed unless the court finds the one subject to the sanction acted with substantial justification making imposition of sanctions unjust. CCP § 2023.030(a). Issue, evidence, and terminating sanctions *may* be imposed. CCP § 2023.030(b), (c), and (d); 2025.450(h).

Here, Defendant previously filed motions to compel further responses which were granted at the hearing on January 26, 2026. The order dated February 2, 2026 provided that the further responses were due within 15 days of the Notice of Entry of Order and that sanctions in the amount of \$2,245 were payable within 30 days of the Notice of Entry of order. The Notice of Entry of Order was filed on February 5, 2026. Therefore, Plaintiff had until February 20, 2026 to provide the responses and until March 7, 2026 to pay the sanctions. It is undisputed that Plaintiff has not complied with the Court's order to provide further responses and further has not complied with the Court's order to pay the monetary sanctions. Additionally, Defendant previously filed a motion to deem matters admitted which was granted at the hearing on July 13, 2026. Finally, Defendant previously noticed Plaintiff's deposition, but he failed to appear for his deposition.

Based on the foregoing, Defendant would normally be entitled to monetary sanctions pursuant to CCP § 2023.030; however, no monetary sanctions were requested. Defendant has only requested terminating sanctions. Issue, evidence, and terminating sanctions are discretionary. Case law instructs that severe sanctions (i.e., evidence or terminating sanctions) for abusing the discovery process, are usually warranted only if a party willfully fails to comply with a court order. *See R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 CA4th 486, 495; *Vallbona v. Springer* (1996) 43 CA4th 1525, 1545; *Biles v. Exxon Mobil Corp.* (2004) 124 CA4th 1315, 1327; *Aghaian v. Minassian* (2021) 64 CA5th 603, 618-620, —“absent unusual circumstances, nonmonetary sanctions are warranted only if a party [acts] willfully” (but concluding that willfulness is not required for issue and evidence sanctions under CCP § 2023.030(b) and (c)).

The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment.

The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. “Discovery sanctions ‘should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. “A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.”

Doppes v. Bentley Motors, Inc. (2009) 174 Cal. App. 4th 967, 992 (internal citations omitted).

Plaintiff's declaration filed July 21, 2026 contains responses to the outstanding discovery. While the responses were untimely and may be insufficient (the Court is making no finding in that regard), they show that Plaintiff is attempting to comply with his discovery obligations. Under the circumstances, the imposition of terminating sanctions would be unjust. There is insufficient evidence that the discovery violations were willful or that less severe sanctions would not produce compliance with the discovery rules. *Id.* While less severe sanctions such as issue or evidentiary sanctions would appear appropriate, none were requested. The Court cannot issue an order awarding monetary, issue or evidentiary sanctions since Plaintiff has not been provided notice of that request in the underlying notice of motion and memorandum of points and authorities.

The motion is **DENIED** without prejudice to Defendant filing a new motion for monetary, issue or evidentiary sanctions, if there are additional discovery violations including and not limited to failing to comply with the Court's order compelling Plaintiff's deposition discussed below. A proposed order was lodged with the Court and will be modified to reflect the denial.

Tentative Ruling on Motion for Order Compelling Plaintiff's Deposition: Defendant Joshua Littlepage moves for an order to compel Plaintiff to attend a deposition pursuant to CCP § 2025.420. The motion is unopposed.

If a party served with a deposition notice fails to appear for their deposition without serving a valid objection, the party giving notice may move for an order compelling the deposition. CCP § 2025.450. Defendant's evidence establishes that Plaintiff was properly served with a deposition notice, failed to object to the deposition notice and failed to appear for the deposition.

Defendant's Motion to for Order Compelling Plaintiff's Deposition is **GRANTED**. Plaintiff shall appear for his deposition within 30 days of service of the notice of entry of order. A proposed order has been lodged and will be modified.

JEFFERSON CAPITAL SYSTEMS, LLC VS. PENDRAK
CASE NUMBER: 25CV-0208892

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on June 30, 2026, to Plaintiff and Counsel for failure to timely seek default pursuant to CRC 3.110(G). No response to the OSC has been filed. No request for entry of default has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. An appearance is necessary on today's calendar. Failure to appear will result in the issuance of an order to show cause re dismissal.

JUNEMAN VS. FCA US LLC, ET AL.
CASE NUMBER: 25CV-0207145

Tentative Ruling on Motion for Sanctions: Defendant FCA US, LLC moves for sanctions under CCP 871.26(j) based on Plaintiff's failure to comply with the disclosure requirements set forth in CCP 871.26(b). The Motion is properly noticed and is unopposed.

CCP § 871.26(b) provides that within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).

Defendant has established that Plaintiff failed to timely serve the mandatory initial disclosures within 60 days of the filing of Defendant's responsive pleading, as required by CCP 871.26(b) and failed to provide complete information or the required documents. Defendants filed their responsive pleading on May 22, 2025. Plaintiff's initial disclosures were due on July 21, 2025. Plaintiff served initial disclosures, along with a single document, on August 6, 2025. Plaintiff has not served any additional documents or disclosures. (Declaration of Lopez ¶¶ 2-8.)

Plaintiff has not established good cause for the failure to comply with CCP 871.26(b). Sanctions of \$1,500 are therefore mandatory pursuant to CCP 871.26(j)(1). The Motion is **GRANTED**. Sanctions of \$1,500 are payable within 15 business days of notice of entry of order.

KAMILLE VS. MAYERS MEMORIAL HOSPITAL DISTRICT, ET AL.

CASE NUMBER: 25CV-0207640

Tentative Ruling on Motion for Summary Judgment/Adjudication: Defendant Mayers Memorial Healthcare District moves for summary judgment, or in the alternative summary adjudication, as to each cause of action alleged in the Complaint, pursuant to CCP § 437c. Plaintiff opposes the Motion.

This is a disability discrimination employment action. Plaintiff's Complaint generally alleges as follows. Plaintiff has autism spectrum disorder. He worked as a Systems Administrator for Mayers in Fall River Mills. He complained about exposure to strong toxic fumes which would seep into his office, which lacked windows and adequate ventilation. The fumes made Plaintiff dizzy and nauseous, causing sensory overload that interfered with this ability to perform his job. Plaintiff requested reasonable accommodation for his disability and was retaliated against and constructively terminated.

The Complaint alleges 12 causes of action. Numbers 10 and 12 were dismissed by Plaintiff. Defendant's Motion suggests the causes of action can be categorized into three theories: 1) numbers 1-5 are disability related claims based on Plaintiff's autism in violation of FEHA; 2) numbers 6-9 allege forms of retaliation for reporting the adhesive odors; and 3) number 11 is for Mayers' vicarious liability for intentional infliction of emotional distress by Plaintiff's supervisor, the individually named Defendant Jeff Miles. Miles does not join in this Motion.

Objections to Evidence: Defendant's objections to evidence numbers 1-4 are overruled.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

1. Disability Discrimination in Violation of FEHA

To establish a *prima facie* case of disability discrimination, plaintiff must show 1) he suffers from a disability, 2) he is otherwise qualified to do the job with or without reasonable accommodation, and 3) he was subjected to an adverse employment action because of the disability. *Lopez v. La Casa de Las Madres* (2023) 89 Cal. App. 5th 365. Defendant argues Plaintiff cannot establish he was subjected to an adverse employment action because of his disability. Defendant also argues there is no causal nexus between Plaintiff’s disability and an adverse action.

There is no dispute that Plaintiff has autism and was subjected to chemical fumes in his office, which came from the maintenance department on the floor below. (AF 6-8) Plaintiff repeatedly complained to Miles that the fumes caused him headaches, nausea, dizziness and other physical symptoms. (AF 9) Plaintiff thereafter submitted his resignation, stating that he felt sick, full of anxiety and could not stop replaying the threat to write him up, and that it was not fair that he had complained about unsafe chemical odors only to be threatened with a write up. (AF64) The Court finds that there are triable issues of material fact regarding whether Plaintiff was subjected to the adverse employment action of constructive discharge. “In order to amount to a constructive discharge, adverse working conditions must be unusually “aggravated” or amount to a “continuous pattern” before the situation will be deemed intolerable.” *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1247.

It is undisputed that the chemical odors were not a one-time occurrence but rather a continuous pattern. (AF 8, 9, 13) The jury must determine whether the working conditions were unusually aggravated, such that the situation was intolerable, effectively forcing Plaintiff to quit. Summary adjudication is denied. The Court also finds that there are triable issues of material fact regarding the causal nexus between Plaintiff’s disability and the adverse action. For example, Plaintiff testified and Defendant does not dispute that Plaintiff’s supervisor Miles called him an idiot. (AF 5) Miles also raised his voice and threatened to write up the Plaintiff while Plaintiff was agitated due to his increased sensitivity to fumes and inconsistencies in his work location, which were both attributable to Plaintiff’s disability. (AF 23-33) Summary adjudication is **DENIED**.

2. Failure to Provide Reasonable Accommodation in Violation of FEHA

“To establish a failure to accommodate claim, [plaintiff] must show (1) she has a disability covered by FEHA; (2) she can perform the essential functions of the position; and (3) [defendant] failed reasonably to accommodate her disability. (*Jensen v. Wells Fargo Bank* (2000) 85 Cal.App.4th 245, 256–257.) A “reasonable accommodation” means a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.”

Brown v. Los Angeles Unified School Dist. (2021) 60 Cal.App.5th 1092, 1107.

Defendant argues they provided a reasonable accommodation. The Court finds there are triable issues of material fact as to whether the accommodation offered was reasonable. For example, it is undisputed that in response to Plaintiff's complaints, his supervisor responded that the options to combat the odors were to open windows, close doors, run fans, or have Plaintiff work at another location, and "there really isn't a short term solution." (AF 22) Whether Defendant's other proposed solutions – including working from another campus where an office may or may not be available, or a breakroom – were reasonable, are disputed fact questions for the jury. Summary adjudication is **DENIED**.

3. Failure to Engage in Interactive Process in Violation of FEHA

"Under section 12940, subdivision (n), it is separately actionable for an employer to fail "to engage in a timely, good faith, interactive process with the employee ... to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee ... with a known physical or mental disability or known medical condition." (§ 12940, subd. (n); see *Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54.) "The "interactive process" required by the FEHA is an informal process with the employee or the employee's representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively.'" (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1013.) Both the employer and the employee are responsible for participating in the interactive process." *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 600.

Defendant argues Plaintiff cut off the interactive process by rejecting the accommodations offered. The Court finds there are triable issues of material fact with respect to whether the employer's offers of accommodation were reasonable and whether the employer engaged in the interactive process in good faith. For example, it is undisputed that in response to Plaintiff's complaints, his supervisor responded that the options to combat the odors were to open windows, close doors, run fans, or have Plaintiff work at another location, and "there really isn't a short-term solution." (AF 22) Summary adjudication is **DENIED**.

4. Retaliation in Violation of FEHA

"In order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a "protected activity," (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042. Defendant argues this cause of action fails because Plaintiff was not subjected to an adverse employment action based on his autism. Defendant refers to the arguments set forth above, regarding constructive discharge and causal nexus. The Court's analysis on those arguments applies here as well and is incorporated by reference. Summary adjudication is **DENIED**.

5. Failure to Prevent Discrimination/Retaliation in Violation of FEHA

Defendant argues that this claim is derivative of the first and fourth causes of action, and for the reasons discussed above, Plaintiff cannot show an adverse employment action or causal nexus. The Court's analysis on those arguments applies here as well and is incorporated by reference.

Summary adjudication is **DENIED**.

6, 7, 8, 9. Whistleblower Retaliation (Lab. Code 6310, 6311, 1102.5, 98.6, 232.5)

Defendant groups the whistleblower retaliation claims together, and argues that these causes of action require Plaintiff to show that he engaged in protected activity, was subjected to an adverse employment action, and a causal link between the two. *St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301. Defendant again argues that these causes of action fail because Plaintiff was not subjected to an adverse employment action and that there is no evidence it was because he complained about the odors. The Court's analysis on those arguments applies here as well and is incorporated by reference. Summary adjudication is **DENIED**.

10. Cause of Action Dismissed by Plaintiff

11. Intentional Infliction of Emotional Distress

Although direct common law liability is barred, a public entity may be held vicariously liable for IIED under Cal Gov Code § 815.2. *Lawson v. Superior Court* (2010) 180 Cal. App. 4th 1372, *Lugtu v. California Highway Patrol* (2001) 26 Cal. 4th 703. This statute provides that a public entity is liable for an injury proximately caused by an act or omission of an employee within the scope of their employment if the employee's conduct would have given rise to a cause of action against that employee individually. Cal Gov Code § 815.2; *Lugtu v. California Highway Patrol*, *supra*, 26 Cal. 4th 703.

Here, there are triable issues regarding Plaintiff's supervisor's actions considering the Plaintiff's disability. The jury must weigh the evidence regarding whether Miles's conduct, considering the totality of circumstances (e.g. Plaintiff's known increased sensitivity to fumes, need for "sameness," and physical and emotional symptoms) rose to the level of extreme and outrageous behavior. Summary adjudication is **DENIED**.

12. Cause of Action Dismissed by Plaintiff

Defendant's Motion for Summary Judgment, or in the alternative Summary Adjudication is **DENIED**. Plaintiff's proposed order will be executed.

LAURENCE VS. HOLT OF CALIFORNIA

CASE NUMBER: 25CV-0207217

Tentative Ruling on Motion for Summary Judgment or Summary Adjudication: Plaintiff Christopher Laurence was employed as a union field mechanic at Defendant Holt of California's Redding location from January 9, 2024 through May 13, 2024. Plaintiff filed his PAGA Complaint on March 11, 2025 alleging 8 causes of action ("PAGA claims"). Plaintiff filed a separate individual Complaint on June 17, 2025, alleging the same 8 causes of action ("Individual Claims"). The actions were consolidated by Court Order on September 15, 2025.

Request for Judicial Notice. Defendant requests the court take judicial notice of the following:

1. Plaintiff's PAGA Notice filed with the LWDA 12/18/24
2. Plaintiff's PAGA Complaint filed in this Court 3/11/25

3. Plaintiff's Individual Complaint filed in this Court 6/23/25 and consolidated with the
PAGA Complaint on 9/15/25
4. Campo's PAGA Notice 6/14/22
5. Campo's FAC filed in El Dorado 10/13/22
6. Final Approval Order for PAGA Settlement dismissing PAGA claims with prejudice
2/2/24
7. Joint Stipulation of PAGA Settlement and Release resolving and dismissing PAGA
claims with prejudice in El Dorado 12/6/23
8. MOU re PAGA Settlement and Release executed by Holt 2/6/24
9. Operating Engineers Local Union No. 3 Collective Bargaining Agreement

Plaintiff objects to the Request as to Exhibits 6, 7, and 8 to the extent the Defendant asks the Court to accept the truth, interpretation, date calculation, scope, legal effect or allege preclusive effect of the documents. Defendant's requests for judicial notice 1-8 are granted, and 9 is denied.

The court has the discretion to take judicial notice of the records of any court of California, or any court of record of the United States or of any other state. Cal. Evid. Code § 452. This discretionary authority encompasses court orders, judgments, findings of fact, and conclusions of law within those court records. *Kilroy v. State of California* (2004) 119 Cal. App. 4th 140. When a prior court order has a direct legal consequence in the current action—such as establishing the existence of a prior judgment, an appellate ruling, or a specific legal order—the court may properly take judicial notice of the order to prove that the court made those orders or reached those results. *Ibid.*

Objections to Evidence. Plaintiff's Objections to Evidence 1-23, 28-33 are overruled. Plaintiff's Objections to Evidence 24-27 are sustained. Defendant's Objections to Evidence 1-12 are overruled, numbers 13 and 14 are sustained.

On August 13, 2026, Defendant filed a Compendium of Evidence for Reply in Support of Motion for Summary Judgment. This 470 pages of new evidence consists of a Supplemental Declaration of Hallie Spaulding, as well as voluminous materials not presented with the original motion. CCP 437c(b)(4) provides in relevant part that the reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers. "[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ..." and if permitted, the other party should be given the opportunity to respond." *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538. Plaintiff objects to the Court's consideration of the new evidence.

Additionally, on August 17, 2026 Plaintiff filed: a Response to Defendant's Objections to Evidence; Objections to Defendant's Evidence; and Objections to Defendant's Response to Plaintiff's Evidentiary Objections. On August 19, 2026, Defendant filed further Objections to Plaintiff's August 17, 2026 filings. Defendant argues these filings are improper and asks that the Court not consider them.

Without seeking leave of court, both sides have filed papers which are not contemplated by the Code of Civil Procedure and the California Rules of Court. The Court finds no good cause to consider these late, improper, and voluminous filings. Consideration of these filings would be prejudicial to each side, because each party lacks the opportunity to properly respond in violation

of due process rights.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Defendant moves for summary judgment or summary adjudication of the following issues: 1) Plaintiff’s PAGA theories fail as a matter of law because Plaintiff lacks standing, 2) Plaintiff is not similarly situated to the PAGA class he purports to represent, 3) there are no triable issues of material fact as to Plaintiff’s PAGA claims or the individual claims, therefore summary judgment is appropriate as a matter of law.

Issue 1: Whether Plaintiff’s PAGA theories fail because Plaintiff lacks standing.

Defendant argues that Plaintiff is precluded from asserting his PAGA claims by the settlement in *Campo v. Holt of California*, El Dorado Superior Court Case No. 22CV1415 (“Campo action”), and because Plaintiff suffered no Labor Code violations not subsumed by the Campo action.

The judgment in a PAGA action is binding not only on the named employee plaintiff but also on government agencies and any aggrieved employee not a party to the proceeding. *Arias v. Superior Court* (2009) 46 Cal.4th 969, 985.

The Campo Settlement defined aggrieved employees as “all nonexempt employees employed by Defendant in California any time between June 14, 2021 through 60 days after execution of the Memorandum of Understanding (MOU). (UF 6-8, 41) The MOU was executed February 6, 2024, therefore the Campo PAGA period runs from June 14, 2021 through April 6, 2024. (Decl. Spaulding Ex. 8) Plaintiff here seeks PAGA penalties on the same basis as Campo. (Decl. Spaulding Ex. 4-7) The El Dorado Superior Court’s Order Approving PAGA Settlement dated

February 2, 2024 in the Campo action is binding not only on the Plaintiff in this action but also on the LWDA and any aggrieved employee not a party to this proceeding. (Decl. Spaulding Ex. 5) Plaintiff's employment ended May 8, 2024. Therefore, the only period Plaintiff has PAGA standing is from April 7, 2024 to May 8, 2024.

Defendant argues that Plaintiff does not have standing for that approximately one-month period, because he cannot demonstrate that he suffered any of the violations alleged during that period. Labor Code 2699(c)(1) requires that Plaintiff "personally suffered each of the violations alleged during the [PAGA] period." As described in more detail in section 3, below, the Court finds that there are triable issues of material fact with respect to whether Plaintiff suffered any of the violations alleged during that period. (UF 22, 23, 29, 30, 43, 44, et al.)

Summary adjudication is **GRANTED** as to Plaintiff's PAGA claims for the period running from June 14, 2021 through April 6, 2024 only, because they are precluded by the Settlement and Release in Campo v. Holt of California 22CV1415. Summary adjudication is **DENIED** as to the Plaintiff's PAGA claims for the period of Plaintiff's employment thereafter.

Issue 2: Whether Plaintiff is similarly situated to the PAGA class.

Defendant argues that Plaintiff is a member of the Operating Engineers Local 3 Union, and his employment with Holt is subject to a Collective Bargaining Agreement which subjects him to different terms of employment, including the payment of wages that are subject to the FAA. The CBA therefore renders him dissimilar to, and inadequate to represent any non-union employees, which comprise 60% of Holt's workforce. Defendant argues Plaintiff therefore cannot proceed on behalf of non-union hourly employees.

"There are only two requirements for PAGA standing. "The plaintiff must allege that he or she is (1) 'someone "who was employed by the alleged violator"' and (2) someone "against whom one or more of the alleged violations was committed."' (*Adolph, supra*, 14 Cal.5th at p. 1120.)" *State ex rel. Balderas v. Fresh Start Harvesting, Inc.* (2024) 101 Cal.App.5th 533, 538-539. PAGA contains no specific class certification requirements, such as typicality. *Brown v. Ralphs Grocery Co.* (2011) 197 Cal.App.4th 489, 501. Plaintiff's status as a union member does not require that his action proceed only on behalf of the Defendant's unionized employees. The request for summary adjudication on this issue is **DENIED**.

Issue 3: Whether triable issues of material fact remain as to Plaintiffs 8 Individual Causes of Action and 8 PAGA causes of action.

Code of Civil Procedure section 437c(b)(1) provides in relevant part that "the supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion."

California Rule of Court 3.1350(d)(1) provides that the Separate Statement of Undisputed Material Facts in support of a motion must separately identify: (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim

for damages, issue of duty, or affirmative defense that is the subject of the motion.

Defendant's Separate Statement of Undisputed Material Facts does not comply with the CCP and CRC. Instead, it lists 56 Undisputed Material Facts "common to all causes of action." Failure to comply with this rule constitutes ground for denial at the court's discretion. *Fleet v. CBS* (1996) 50 Cal.App.4th 1911, 1916, fn. 3. The Court declines to exercise its discretion to deny the motion on these grounds.

1. and 2. Failure to Provide Meal and Rest Periods, in Violation of Labor Code 512 and 226.7

Defendant argues that meal and rest periods were provided, and that Plaintiff admits that he was in control of his time and trained to take compliant meal and rest breaks. (UF 53) Holt did not interrupt his breaks, or if it did, Plaintiff elected to by choice. He never told anyone at Holt when he was on a break and voluntarily took calls without knowledge from Holt. (UF 51) Defendant argues Plaintiff is responsible for any failures to comply with Holt's compliant policies. Plaintiff has shown triable issues of material fact remain regarding unpaid meal or rest premiums and interrupted breaks. (AMF 12-14) Summary adjudication is **DENIED**.

4. and 5. Failure to Pay Minimum and Overtime Wages

Defendant argues that Plaintiff was always paid at the applicable minimum wage rate or higher (UF 29, 30, 43) and that Plaintiff was properly paid double minimum wage and overtime. (UF 22, 29, 30, 44). Plaintiff has shown triable issues of material fact remain regarding rounding of time entries and off-the-clock work. (UMF 43) Summary adjudication is **DENIED**.

8. Failure to Reimburse Expenses in Violation of Labor Code 2802

Defendant argues that its written policies comply with Labor Code 2802, and Plaintiff was provided all tools and technology needed to complete any work task, and provided a phone, laptop and gas card. (UF 28) Plaintiff has shown triable issues of material fact remain regarding whether Plaintiff supplied his own and tools without reimbursement, and whether he had to use his personal phone because the company issued phone didn't work in rural areas. (AMF 14, 15) Summary adjudication is **DENIED**.

3. Failure to Provide Complete and Accurate Wage Statements Labor Code 226; 6. Failure to Pay Wages During Employment; and 7. Failure to Pay all Wages Due to Discharged and Quitting Employees

Defendant characterizes these remaining causes of action as derivative claims that fail because the underlying claims fail. The Court has denied summary adjudication as to the underlying claims as detailed above. Therefore, the derivative claims survive as well. Summary adjudication is **DENIED**.

Defendant's Motion for Summary Judgment is **DENIED**. Summary adjudication is **GRANTED** in favor of Defendant as to Plaintiff's PAGA claims only for the period running from June 14, 2021 through April 6, 2024, because they are precluded by the Settlement and Release in *Campo v. Holt of California*. Summary adjudication of the remaining issues is **DENIED**.

IN RE: LIU

CASE NUMBER: 26CV-0210855

Tentative Ruling on Petition for Change of Name: Petitioner Karen S. Liu seeks to change her name to Kacey S. Liu. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

PERRY VS. COUNTY OF SHASTA

CASE NUMBER: 26CV-0209982

DISCLOSURE: Judge Birss worked as an associate attorney at Berg and Associates from June 2014 through September 2018. His prior employment falls outside the time period requiring recusal. That prior employment does not impact his ability to be fair and impartial.

Tentative Ruling on Motion for Stay of Enforcement: Petitioner Candilyn Perry moves for an order to stay the enforcement of fines and penalties imposed by an Administrative Order issued by Respondent County of Shasta. The motion is opposed.

At the prior reviews hearing on April 27, 2026 and June 15, 2026, the issue of a stay was raised¹ and the parties appeared in agreement that the matter could be stayed. On April 27, 2026, counsel for the Petitioner was encouraged by the Court to draft an order related to his request for stay, meet and confer with counsel for the Respondent as to form and content, and submit a proposed order to the court. Petitioner's counsel represented to the Court he would do this. However, this never occurred. On June 15, 2026, he was reminded of the Court's request. Once again, he represented to the Court he would do this. Once again, it did not occur. Nevertheless, and despite this apparent agreement, Petitioner filed the present motion on July 23, 2026. Respondent opposes the motion.

Given the prior representations to the Court, this matter is continued to **Monday, September 21, 2026, at 8:30 a.m. in Department 64.** The parties are ordered to meet and confer on the issue of a stay. If the parties are able to reach an agreement, they may submit a stipulation and order. If the parties are unable to reach an agreement, the Court requires the parties to file declarations no later than September 14, 2026 which provide the parties meet and confer efforts.

Additionally, the Court notes that Petitioner filed several motions (not on calendar today) regarding the administrative record and a briefing schedule. The Court is puzzled by this, as the administrative record has been submitted to the Court and a briefing schedule was already agreed to by counsel at a prior hearing. The parties are ordered to meet and confer regarding these issues and inform the Court if those motions can be dropped from calendar as moot. **No appearance is necessary on today's calendar.**

¹ In the Amended Petition for Writ of Administrative Mandate filed 4/22/26, Petitioner's prayer for relief made reference to requested stay stating "(t)hat enforcement of the Order, including any penalties or collection efforts, be stayed pending final resolution of this matter".

THOMAS VS. WALKER

CASE NUMBER: 24CV-0206590

Tentative Ruling on Motion to be Relieved as Counsel: Plaintiff's Counsel, James Arrasmith, moves to be relieved as counsel. Counsel has filed a Notice of Motion and supporting Declaration, as required. However, no proof of service is on file. The Motion is therefore **DENIED** without prejudice.

U.S. BANK TRUST, N.A. VS. SELLS

CASE NUMBER: 22CV-0200669

Tentative Ruling on Motion to Substitute Successor in Interest: Plaintiff U.S. Bank Trust, N.A., as Trustee for LSF9 Master Participation Trust, moves to substitute Charles Sells in place of defendant Joe Tiegue Sells pursuant to Code of Civil Procedure sections 368.5 and 389. This matter first came on for hearing on July 6, 2026. The Court's tentative stated that because Charles Sells had not yet appeared in the action, the Court would require proof of service of the Motion in the manner of summons. The moving party did not appear at the hearing. The clerk mailed a copy of the minutes as a courtesy. No proof of service of the Motion in the manner of summons has been filed. Therefore, the Motion is **DENIED** without prejudice.

9:00 a.m. Review Hearings

CAPITAL ONE, N.A. VS. WHITMIRE VAZQUEZ

CASE NUMBER: 23CVG-01238

This matter is on calendar for trial setting. The Court intends to set this collections matter for a Court Trial on an upcoming Monday 10:00 a.m. calendar. The parties are ordered to appear today with available trial dates.

DURBIN, SR, ET AL. VS. MOHAMMADI, ET AL.

CASE NUMBER: 25CV-0208902

This matter is on calendar for review regarding status of settled statement. Plaintiff filed his Proposed Settled Statement on July 22, 2026. Defendant filed his Opposition to the Settled Statement, along with an alternative Proposed Settled Statement on July 28, 2026. Plaintiff has also requested a hearing pursuant to CRC 8.137(f). The materials currently are under review by the bench officer who heard the original Motion subject to the pending appeal. Today's review hearing is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 64** for review regarding status of settled statement. No appearances are necessary on today's calendar.

LAFAYETTE FEDERAL CREDIT UNION VS. CRONE

CASE NUMBER: 24CV-0206619

This matter is on calendar for review regarding status of bankruptcy. A Notice of Stay of Proceedings was filed February 23, 2026. No status statement has been filed. An appearance is necessary on today's calendar to provide a status of the bankruptcy.

MAITIA, ET AL. VS. BENEFICIAL INSECTARY, INC.

CASE NUMBER: 25CV-0207840

This matter is on calendar for trial setting. The parties have filed a Joint Case Management Statement indicating that the matter recently settled and requesting a continuance to finalize the agreement and move for approval. This matter is set for **Monday, November 23, 2026 at 9:00**

a.m. in Department 64 for review regarding status of settlement. No appearances are necessary on today's calendar.

MCLEAN VS. SHASTA ORTHOPEDICS & SPORT MEDICINE, ET AL.

CASE NUMBER: 25CV-0208255

This matter is on calendar for trial setting. The Court designates this matter as a plan III case and intends to set the matter for trial no later than July 20, 2027. Defendant has posted jury fees but Plaintiff has not. Plaintiff is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

IN RE SANTORO

CASE NUMBER: 26PB-0033272

This matter is on calendar for review regarding confirmation of receipt and acknowledgement of deposit. No "Receipt and Acknowledgment of Order for the Deposit of Money Into Blocked Account" has been filed. No status report has been filed. The parties are ordered to appear to provide the Court with a status of the deposit of the funds into a blocked account.

WILDMAN VS. CARE OPTIONS MANAGEMENT PLANS AND SUPPORTIVE SEVCES, LLC, ET AL.

CASE NUMBER: 22CV-0199456

This matter is on calendar for review regarding status of settlement. Plaintiff filed a Notice of Settlement of Entire Case on March 2, 2026, indicating that a request for dismissal would be filed within 45 days of February 27, 2026. No request for dismissal has been filed. No status statements have been filed. The Court intends to dismiss this case pursuant to California Rule of Court 3.1385(b) unless the parties appear at today's hearing and show good cause why the case should not be dismissed.